



जिल्हा न्यायालय भरती उपयुक्त English Typing Speed passages

संकलन - स्टेनो महाराष्ट्र टीम

मार्गदर्शक - Ashpak Sir (Owner Steno Maharashtra)

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Passage No 1

The petitioner is an accused for offences punishable under Sections 302 and 201 of the IPC. He was convicted for the said offences and was taken into custody on 11.07.2009 and is in custody from the said date even today. A criminal appeal filed by the petitioner before this Court is also dismissed on. The claim of the petitioner in the subject petition is that the petitioner though not completed 14 years as is required in law for a premature release, is before this Court seeking consideration of his premature release on account of his exemplary conduct in the prison and acquisition of several educational qualifications while in prison. The qualification that the petitioner has acquired while in prison are as follows: The petitioner has acquired Post Graduate Certificate Training in Cyber Law from National Open University, a certificate to that effect is also issued to the petitioner. The petitioner has further acquired Post Graduation Diploma in Criminal justice again by the National Open University, a certificate to that effect is also appended to the petition. Apart from the qualifications that he has acquired while he is in prison, there are several certificates of appreciation by the Superintendent of Prison appended to the petition. These are all matters of record and are not in dispute. The imprisonment certificate of the petitioner would demonstrate that the petitioner has completed close to 13 years 2 months as on date in prison and according to the learned AGA, he has to wait for another 10 months for completion of 14 years for him to seek any premature release. Learned counsel appearing for the petitioner would seek to place reliance upon plethora of judgments rendered by the Apex Court, where the detenu has been released much before the completion of 14 years or much before completion of the term owing to the qualifications that they have possessed during their imprisonment and for the exemplary conduct that they have maintained while in prison as per the certificates issued by the respective superintendents of such prison. The detenu in this case is about 46 years of age now and we are informed that during the period of incarceration in jail, he has completed the following educational We find that the detenu in this case was convicted in another case under Section 120 of the Indian Penal Code, 1860 and sentenced to imprisonment for 5 years and was convicted under Section 4 of the Explosives Substances Act. (410 words)

Passage No 2

The petitioner seeks quashing of the letter dated passed by the respondent no. 3 whereby, the family pension has been denied to the petitioner. The reason for denial by the Accountant General is that the name of the petitioner is not mentioned as a wife of the deceased-employee in his pension papers and nor any list of family members was received. If the wife and family members had been alive, why the concerned authority sent the pension case without sanctioning family pension alongwith list of family members and why the 2 names are not mentioned in the list of family members. The case of the petitioner is that her husband was working in the office of respondent no. 2 and retired as Assistant Unit Officer. The said order was further revised by the Additional Sessions Judge, Ludhiana after the matter had been referred to the Lok Adalat wherein, the matter had been compromised. Thereafter, the husband had joined the company of the petitioner at Ludhiana and started living with her and died on 30.11.2008. State has contested the writ petition on the ground that the details of the family members were not mentioned and the suit had been withdrawn and, therefore, the writ petition should be dismissed. Respondent no. 3 on the other hand, has taken a stand that the name of the petitioner and other family members having not been mentioned in the pension papers, pension could not be granted to the petitioner. Clarification had also been sought regarding the status of the wife and the children from respondent no. 2 which is still awaited. After hearing counsel for the parties, this Court is of the opinion that the present writ petition is liable to be allowed. From the record, it would be apparent that the petitioner had, way back in the year 1991, filed her claim for maintenance for herself and her two children. A paltry amount of 200/- per month was awarded to her and her husband had never contested the proceedings before the Magistrate. Thereafter, she had filed a revision for enhancement of the amount. The husband had put in appearance and made a statement that he was willing to give a lump sum amount to her and the children could also come and visit him if they so liked. Thus, criminal litigation was also to be withdrawn. The revision petition may be disposed of accordingly. (400 words)

Passage No 3

Heard the learned advocate for the petitioner and the learned Public Prosecutor for Respondents. Rule made returnable forthwith. Respondents waive service, By consent matter is heard finally. By his judgment and order dated 25.5.2000 the learned Sessions Judge convicted the petitioner under Section 302 of IPC. The said judgment and order was challenged by the petitioner in an appeal which is pending before this Court. During the pendency of the appeal, the petitioner preferred application for parole on the ground that his wife was required to be operated. The said application came to be rejected. Against the said order of rejection, the petitioner preferred writ petition before this Court. The said writ petition came to be rejected as the petitioner had remedy of preferring appeal against the order of rejection of parole. Thereafter, the petitioner preferred an appeal to the State Government which came to be rejected. Being aggrieved by the said order of the State Government rejecting his application for parole leave, the present petition has been preferred by the petitioner. The application for parole came to be rejected on two grounds. The first ground was that there are other relatives to take care of his ailing wife and hence the presence of the petitioner was not required. The second ground was that the authorities did not have the jurisdiction to entertain grant of parole leave during the pendency of his appeal before this Court.

The learned Public Prosecutor inspite of the stand taken in the affidavit, has supported the stand taken by Ms and stated that though the appeal preferred by the petitioner against his conviction is pending before this Court, the authorities still have jurisdiction to entertain the application for parole. He submitted that in view of the provisions of Section 432 of the Code of Criminal Procedure, the State Government can grant parole to a convict prisoner even though his appeal is pending before this Court. However he did not substantiate this submission.

Before we advert to the controversy before us, we may indicate in short, the scheme in respect of parole leave granted to convicted persons in its application to the State of then Bombay, the Government of then Bombay framed the Prison Rules. 'Furlough' and 'parole' are two distinct terms now being used in the Jail Manuals or laws relating to temporary release of prisoners. These two terms have acquired different meanings in the statute with varied results. (404 words)

Passage No 4

It is, thus, clear that the power conferred on the Divisional Board under Regulation 102 to amend the result of the examination in respect of any candidate or candidates on its being found that it has been affected by error, malpractice, fraud, improper conduct, etc. is a suo motu power of the Board. The Regulation in any case does not confer any right on an examinee to demand revaluation, disclosure, inspection or verification of his answer-books or other related documents. The right of verification conferred by clause 1 is subject to limitation contained in the same clause that no revaluation of the answer books or supplements shall be done and further restrictions imposed by clause 3 prohibiting disclosure or inspection of all the answer books. From the judgment of the Supreme Court, it is thus clear that all the questions/ issues raised concerning Regulations 104 and 102 of the Regulations were settled unequivocally and no grey area was left out for further interpretation. In the face of settled position of law, in our opinion, it is not open for the Court to direct revaluation of the answer books in any case whatsoever. Against the backdrop of the law laid down by the Supreme Court in the aforementioned judgment we now proceed to see as to what was the question raised in the writ petitions. The petitioners therein were also students of the English medium school and had appeared for S.S.C examination conducted by the State Board in 2005. The case set up by all the petitioners was that all throughout they had scored good marks in all the subjects including English. The grade of marks earned by them, in the final examination conducted by the Board, in the subject of English were, however, not upto their satisfaction and expectations. Therefore, they had applied for revaluation though there is no provision in the Act or Regulations to make such request. The Board, by its reply to the said application, informed them that the only remedy available to them was to apply for verification and not for revaluation. Since all the petitioners apprehended that the verification may not serve the purpose they had filed the writ petitions in the High Court for redressal of their grievance praying for relief of revaluation of answer books. Validity of Regulation 57, which is pari materia with Regulation 104, was also challenged on the ground that it is unreasonable, arbitrary and unconstitutional. (405 words)

Passage No 5

It is thus clear that the function of a marginal note is as a brief indication of the contents of the section. It cannot be referred to for the purpose of construing the meaning of section particularly when the language is plain and simple. In other words, it cannot construe the meaning of the body of the section if the language employed therein is clear. If the relevant provisions in the body of the statute firmly point towards a construction which would conflict with the marginal note the marginal note has to yield. In short, the marginal note is a poor guide to the scope of a section. In any case, the marginal note cannot be legitimately used to restrict the wide words/expressions in the section or plain term of an enactment and it cannot be said to be enacted in the same sense. In the present case, in our opinion, sub-section 1 of section 41 of PSCC Act is clear and unambiguous. The use of conjunctive, as aforestated in the marginal note appears to be an accidental slip. The disjunctive or in sub-section 1 cannot be overlooked while interpreting the provisions of section 41. The disjunctive or clearly indicates that the court of Small Cause shall have a jurisdiction to entertain and try all suits and proceedings between the licensor and licensee relating to the recovery of possession of any immovable property situated in Greater Bombay and it is not necessary that such suit should also be for recovery of any licence fee. There could be a suit against licensee relating only to recovery of possession of any immovable property. The Legislature has not used the conjunctive and in sub-section 1 of section 41 purposely thereby, in our opinion, making its intention clear that there could be a suit only relating to the recovery of possession of immovable property against the licensee. The provisions of section do not specifically exclude the gratuitous licensee or makes any distinction between the licensee with material consideration and the licensee without material consideration. If that would have been the intention of the legislature nothing would have prevented it from saying so specifically. It appears that even in the Statement of Objects and Reasons conjunctive and is used. In paragraph 43 of the judgment, the Division Bench has made the analysis of the Statement of Objects and Reasons. We find it difficult to accept the analysis made therein. (404 words)

Passage No 6

The Division Bench of this Court while considering a group of petitions filed by the petitioner employers relating to the application of the Maharashtra Mathadi, Hamal and Other Manual Workers Act, 1969 felt that principally two questions of law arise for the determination of the Court in those proceedings treating the writ petition as a lead petition. The two questions of law for determination of the controversy were formulated after considering the various provisions of the Mathadi Act, 1969 and the Schemes enacted thereunder like the Cloths Markets and Shops Unprotected Workers Scheme, 1971 and the Grocery Markets, Shops Unprotected Workers Scheme, 1970 and Iron and Steel Scheme which have been made in exercise of the power conferred by Sections 3 and 4 of the Mathadi Act, and the various schemes formulated under the said Act. The Bench examined the issue in the backdrop of the previous decision of this Court. It also referred to the decision of the Division Bench dated 16th January 1980 the backdrop of the statement of objects and reasons underlined in the enactment of Mathadi Act of 1969 and after examining the definition of the term unprotected worker defined in Section 2 of the said Act and worker as defined in section 2 the Bench found that once the Act defines the expression unprotected worker the definition in the Act provides a statutory dictionary. The Court is under bounden duty to apply the provisions of the said Act to such worker who stands covered by the definition, and, therefore, it was not open to the Court to adopt the meaning of the expression unprotected worker to apply only to the casually engaged workmen who would come within the purview of the Act, which is at variance with what has been laid down by the competent legislation and it felt that the judgment of the Division Bench not advert to the definition of Section 2 11 in the judgment in its proper perspective. The Division Bench observed that the definition merely indicates that unprotected workers are manual workers who are engaged or to be engaged in any scheduled employment and, therefore the Division Bench felt that the judgment in Century Textiles does not give effect to the plain meaning of the language used by the legislature in section 2 11 and requires consideration. They framed the following question of law for being considered by a Larger Bench. (400 words)

Passage No 7

It is true that the pension is neither a bounty nor a matter of grace depending upon the sweet will of the employer. However, the right of pension is always subject to the rules. It is not inherent in the employment. Though pension is a payment for a past service rendered and it is a social welfare measure, but it is well settled that an employee is not entitled to pension dehors the rules. We have already referred the Government Resolution and held that the said Scheme is only applicable to the employees covered therein. A part time teacher, unfortunately, is not covered by the said Scheme and, therefore, not entitled. The part time lecturers form a class by themselves and the said classification cannot be said to be unconstitutional or bad in law. As a matter of fact, there is no challenge to the legality and validity of the Government Resolution. There is no direct or indirect ground set out in the entire Writ Petition in this regard. The learned single Judge held that attempt to terminate their services to accommodate full time teachers in view of policy decision to that effect and refusal to follow rule of equal pay for equal work would be violative of Articles of the Constitution. The Division Bench clarified that the decision of the learned single Judge shall not operate as a precedent hereafter. The learned counsel for the respondent urged that the issue as to whether the part-time service could be counted for the purpose of pension is concluded by the judgment of the learned single Judge. According to him, the said judgment was affirmed by the Division Bench of the High Court preferred against the order of the Division Bench was also dismissed by this Court. The learned counsel for the appellant sought to distinguish the said judgment. In these circumstances, we leave it open to both the sides to urge all the contentions available to them in the main writ petition pending before the High Court including the question whether part-time service could be counted for the purpose of pension is already concluded by the earlier judgment or not. The aforesaid observation of the Supreme Court would show that there is no concluded judgment of the learned single Judge holding that part-time service could be counted for the purpose of pension. It was clarified in that order that this aspect is needed to be considered at the time of hearing of the main Writ Petitions. (416 words)

Passage No 8

According to the petitioners, the offending vehicle gave dash the motorcycle driven by the deceased from behind. It is mention in the spot panchnama that the left side headlight and portion of the bonnet of the offending vehicle were damaged. Further, backside headlight and indicator light of the motorcycle were also damaged. Having regard to the portion of both vehicles on which it sustained damage it appears that, the offending vehicle dashed to the motorcycle of the deceased from behind. This shows rash and negligence on the part of respondent No.1. He deposed that at the time of accident that the deceased did not wear helmet and while trying to overtake the offending vehicle from wrong side the accident occurred. It is pertinent to note that, respondent No.1 is accused in crime registered in respect of accident in question. Though it has come in his evidence that accident took place due to the fact that deceased overtake offending vehicle from wrong side, perusal of spot panchnama do not show any impact on the left side portion of the offending vehicle. The offending vehicle sustained damage on front side towards left. Location of the damaged portion of the both vehicles give rise to inference that offending vehicle gave dash to the motorcycle driven by the deceased from behind. Moreover, after investigation, police charge sheeted Respondent No.1 for the offence punishable under section of Indian penal code. Under such circumstances it is held that, the respondents failed to prove that the accident caused because the deceased overtaken the Car form wrong direction. On the other hand, learned counsel for the insurance company submitted that, in this matter the driver of the offending vehicle i.e. respondent No.1 entered into witness box and deposed about the manner in which accident occurred. He categorically deposed that, at a time of accident the deceased did not wear helmet and he entangled it to the side guard of the motorcycle. He also produced a colour photograph of the motorcycle lying on the spot, which corroborates fact that the helmet was entangled to the side guard of the motorcycle. Therefore, he submitted that there is positive evidence on record to show that the deceased did not wear helmet at the time of incident and consequently he contributed for his death. Honourable Bombay High Court directed deduction of 30% amount from the compensation on account of contributory negligence on the part of the deceased. (405 words)

Passage No 9

The learned Advocate for the accused pointed out the material available in the charge-sheet. He submitted that the accused no.4 is the owners of the firm who undertook to construct the building / project. The contract and sub-contracts were given for miscellaneous works. The contract of fixing glass was given to another contractor who is an accused no.1 and 2. The said accused were having control over the construction as well as fixing the scaffolding by deputing the labours as well as by taking the proper care and precaution. The present accused cannot be saddled with the vicarious liability. Hence, prayed for discharge. The Learned DGP opposed the application contending that there is a sufficient material against the accused. The accused failed to install new and fresh scaffolding. The one which was in use was old one and not suitable. Hence, prayed for rejection of application. The offence of causing death by negligence is required an act of rash or negligence not amounting to culpable homicide. The accused must and with some intention needs to do certain act which may be rash or negligent so as to cause harm to the others. In present case, as per the material on record, present accused are the owners of a construction firm who undertook to carry out the construction. Thus, prima facie, the direct involvement of present accused of rash or negligence at the site seems to be very remote. Even it is to be noted that the contract and subcontracts of construction as well as fixing glass was allotted to the contractors and such contractors are already implicated as an accused. Thus, the offence, rather the main offence of causing death by negligence, does not attract as against present accused. The accused are also booked for the offence of causing disappearance of evidence of offence and intentional omission to give information of offence by person bound to inform. Both the offences are interlinked. The present accused being owner of the firm, having no control over the activities going on at the site. The contractor and subcontractors were deployed for the assigned works to them. It was, in that case their responsibility to communicate the happening and non-happening of any events. So far the offence of common intention is concerned, there cannot be such intention as the deceased accidentally fell and succumbed to the injuries. Thus, there won't be any question of common intention. (402 words)

Passage No 10

This bench was constituted to consider two questions framed by the Division Bench of this Court addressing itself to the menace or problem and danger created by existence of stray dogs in the State of Maharashtra and Goa. Basically, the reference was required because subsequent division bench then that which presided in Writ Petition of 1998 thought it fit that certain provisions of the Prevention of Cruelty to Animals Act have not been placed before the division bench deciding Writ Petition of 1998. However, during the pendency of this petition the judgment and Writ Petition of 1998 was affirmed by Supreme Court of India and thereafter the Government of India issued rules under the Prevention of Cruelty of Animals Act, 1960 for Animal Birth Control (Dogs) Rules, 2001. Substantially these rules were brought into existence to give statutory effect to the guidelines given by this Court in Writ Petition of 1998. Further we are informed today that two writ petitions on the original side of the Supreme Court of India filed under Article 32 of the Constitution are pending wherein several orders have been made by the Supreme Court of India which indicates that the matter is under active consideration of the Supreme Court of India. In such circumstances our addressing ourselves to the issues raised may not be necessary or proper at this juncture. The problem created by stray dogs have been actively considered and Action Plan for Control of Stray Animal Menace which include dogs has been laid down by the Government of India. This action plan also takes note of the judgment of this Court in Writ Petition of 1998. Apart from the fact that there is no challenge to the statutory rules framed in 2001 which is after reference was made to consider any constitutional challenges to the validity of any enactment when the matter is under active consideration of the Supreme Court of India. In our opinion, there is no other alternative but to adjourn the matter. The matter is listed for further orders on 13th December, 2005. The parties are at liberty to appropriately amend the pleadings if they so desire.

My Learned Predecessor has framed the charge against accused vide Exh.8, the endorsement thereon shown that, the contents of accusations were read over and explained to him in vernacular to which he pleaded not guilty vide Exhs.9 and claimed to be tried. (400 words)

Passage No 11

In the case at hand, it is clear crystal that on the basis of a complaint made by the member of the Legislative Assembly, an enquiry was directed to be held. It has been innocuously stated that the complaint was relating to illegal selection on the ground that the appellant did not possess the requisite qualification and was appointed to the post of chest Therapist. The report that was submitted by the Cabinet Department eloquently states about the conduct and character of the appellant. The stand taken in the counter affidavit indicates about the behavior of the appellant. It is also noticeable that the authorities after issuing the notice to show cause and obtaining a reply from the delinquent employee did not supply the documents.

Be that as it may, no regular enquiry was held and he was visited with the punishment of dismissal. It is well settled in law that if an ex-parte enquiry is held behind the back of the delinquent employee, there are stigmatic remarks that would constitute foundation and not the motive. Therefore when the enquiry commenced and thereafter without framing of charges or without holding an enquiry the delinquent employee was dismissed there is clear violation of principles of natural justice. It cannot be equated with a situation of dropping of the disciplinary proceedings and passing an order of termination simpliciter. In that event it would have been motive and could not have traveled to the realm of the foundation. We may hasten to add that held the appellant would have been visited with minor punishment; the matter possibly would have been totally different. It is also not the case that he was terminated solely on the ground of earlier punishment. In fact he continued in service thereafter. As the report would reflect that there are many allegations subsequent to the imposition of punishment relating to his conduct, misbehavior and disobedience. The Vigilance Department, in fact had conducted an enquiry behind the back of the appellant. The stigma has been cast in view of the report received by the Central Vigilance Commission which was ex-parte and when that was put to the delinquent employee holding of a regular enquiry was imperative. It was not an enquiry only to find out that he did not possess the requisite qualification. Had that been so the matter would have been altogether different. The allegations in the report of the Vigilance Department pertain to his misbehavior. (407 words)

Passage No 12

The need of our country is more production, larger development at a faster rate and larger savings for productive investment, in order to meet the needs of employment and higher living standards, there should be progressive acceleration in the rate of development of our economy. The tempo of development has to be kept high. Obviously, the ensuing plan has to be larger. With the need for a big plan, the pressure on resources, domestic and foreign, should obviously prove larger.

During the last two years, so far as foreign resources were concerned, we were able to pull through only the core of the plan with finance from abroad substantially through governmental agencies. Our capacity to borrow has been strained. Our requirements are bound to grow higher at a faster rate of economic development. Having regard to this, our ideas and policies would need some alteration. Some adjustment in the quantum of foreign exchange demand is possible through a discerning policy on imports. Imports are already greatly pruned, but further scrutiny is possible in certain directions. Essential developmental needs should be able to get precedence over production of less essential goods. There may be selective imports giving higher priority to developmental imports to meet the more basic needs of the economy. Even with these changes, the demand for foreign exchange would remain considerable and beyond our capacity with our present technique of borrowing. The Government and the Planning Commission should study the industrial policy from the point of view of an appropriate re-shaping. Apart from Government to Government borrowings from abroad, foreign capital both in the shape of private loans and equity participation should be induced to come into the country, work with the people shoulder to shoulder in the development of the country's economy and share the prosperity. Such private projects will be automatically moving forward.

So far as internal resources are concerned, many concerned, many economists and experts have engaged themselves in analysing and working out the effects of increased national income and the channels of utilisation. They have also been assessing the percentage of national income to be saved for development and what and how it could be attracted, to the exchequer. The invariable conclusion of the experts appears to have been that adequate resources are not saved by the society on account of increased consumption arising from higher national income. This has led the government to the policy.

(401 words)

Passage No 13

One of the biggest mistakes we made when we gained Independence was not to have overhauled thoroughly our educational system and structure. We are paying for it now. It is very easy to know what one wants to do, but in a country of this size and diversity and with our Constitution, which places education on the State List, it is not very easy to change these things. Nevertheless, I am glad to say that our present Education Ministry is making a valiant effort to make certain changes.

We have first of all to think of what is Education and what we want education to do for us. No doubt there is need for good institution, for good Schools and Colleges and Universities, but education is not something that is confined to the Classroom. It is something which begins from the moment is born till the last breath that the old person draws. One is learning continuously from what is happening to one or around one, from the people with whom one is mixing, from the books one is reading and even from the events of the world which may take place far away. And it is this ability to learn which is true education. Only if we know how to learn from what happens, or what we see, then can we really profit from whatever happened, good or bad, happy or sorrowful. I think this is the only education which I got. I have gone to a number of schools, some good schools, some not so good. I have been to perhaps two of the best Universities in the world. But I can honestly say that what I have learnt has not been within the walls of those classrooms but outside. I must in fairness say that these Institutions taught me how to learn outside. Education is not what a person learns but what he becomes. So, all these ideas are with us since for long, and we have to see how we can translate them into reality in our lives. There is no doubt that education has to be closely linked with the life of the community in which the child or the student lives. Each of us is one being in which everything must move in coordination. If the coordination does not work, then it is very hard for the human being. And through education we want to develop human beings who are well coordinated. (408 words)

Passage No 14

The intention of the respondent was not honest as he found that the respondent was trying to sell the property in dispute to some other party at a much higher price. Having found that the respondent was not interested to execute the sale deed as agreed upon, he approached the respondent on 21st of June, 2006 to execute the sale deed, when he also intimated the respondent that he was ready and willing to perform his part of the contract to execute the sale deed the respondent refused to perform its part of the contract and informed that they would not execute the sale deed until and unless the appellant agreed to pay a higher sale consideration over and above what was agreed to between the parties.

Having found that the respondent was trying to sell the property in dispute to a third party at a higher price, the appellant filed an application under section 9 of the Act on 23rd of June 2006 before the City Civil Judge, Bangalore for injunction restraining the respondent from alienating, altering or creating any third party interest in respect of the property in dispute. With the application the appellant also filed an application under Order 39 Rule 1 and 2 read with section 151 CPC for temporary injunction restraining the respondent from transferring, alienating or creating any third party interest in the same.

The respondent entered appearance and denied the material allegations made in the application for injunction. It was the specific case of the respondent that since time was the essence of the contract and the appellant having failed to perform his part of the obligation of the contract the respondent was not bound to execute the sale deed and therefore the agreement for sale was cancelled by the respondent. The Additional City Civil Judge Bangalore by his order dated 23rd of September 2006 allowed the application filed by the appellant, inter alia on a finding that there are serious issues to be tried before the arbitrator and that the appellant has successfully made out a prima facie case for grant of injunction in the manner prayed for in the application. The Learned Additional City Civil Judge Bangalore while disposing of the application for injunction came to a finding prima facie that the respondent intended to sell the property in dispute to some other persons at a higher price as it was found that the intending purchasers were frequently visiting for the purpose of purchasing the property in dispute. (417 words)

Passage No 15

General education beyond the high school stage was for long mostly preparing the student for college studies. However a small percentage of students because of financial constraints joined professional courses offered in the polytechnics or industrial training institutes or similar vocational institutions to be able to earn a living and thereby supplement the family income. In either case it was lopsided being all theory or all training with no attempt for the integration of theoretical education and practical training at any stage. By denying students practical training in the scheme of general education the system only encouraged them to seek white-collar jobs. University degrees became a status symbol. At the other extreme vocational training completely barred one of the benefits of general education. Unnecessary hierarchy was being created. Students with such training were not considered really educated though in economic terms they were high productive. The skilled worker was generally dubbed as a workhorse and treated as a second class citizen. Thus the traditional system of education had ushered in a class consciousness among the people those with theoretical education dubbed as the elite and these with practical training derived as the workhorse. This attitude has certainly been spoiling the growth of developing nations.

The index of the level of development of any nation is the degree to which education and training facilities are offered to its people. Whatever the field be it agriculture industry health of commerce an adequately trained labour force is a must for performance of its functions efficiently. Excluding a small sector of administrators, scientists, technologists, doctors, teachers, engineers etc. all others have to be imparted education with training for gainful employment. The modern approach is that even the so called doctor and lawyer should be skilled men. Gone are the days when a doctor would like to surround himself with half a dozen persons who will perform lesser functions like taking temperature changing sheets etc. The modern concept is the doctor himself must be skilled in all these functions if he is to be really successful. A variety of skills, mental and manual have to be developed in the people and more particularly in the youth. If quality of life is to improve education and training should be oriented to meet the needs of the locality in particular and the country as a whole and afford adequate opportunities and scope for employment to the youth. (400 words)

Passage No 16

Political parties can approach the people at large for fund collection. But, elections cannot be fought on that alone. Now moneybags have to be tapped for the election of most candidates of all parties. By law, companies cannot donate to political parties, but political parties can collect funds. Obviously this is number two money. There is no accounting of this money. The Joint Select Committee of Parliament had accepted the recommendation that an expert committee be set up for this. This was however not done. In 1990 the then Law Minister had prepared an Amendment Bill proposing extensive amendments to the Representation of the People's Act. Those proposals represented a consensus between all the political parties. It is true that some of those proposals have been given effect to in 1996 but many remain unimplemented including the proposals relating to election expenditure and State funding of candidates.

My Government has taken the exercises of electoral reforms seriously. We appointed a Committee on State Funding of Elections under the chairmanship of Shri Indrajit Gupta. This Committee has recently submitted its report. The Law Minister made a reference to that report in his speech. I am happy that Shri Indrajit Gupta is invited to the Seminar to preside over the session on Election Expenses and State Funding of Elections to be held tomorrow. To facilitate free and fair election the Election Commission has published certain guidelines. There is a demand that the Government give statutory status to some of them. Effective implementation of these rules of conduct depends upon the good sense of the political parties, sense of discipline on the part of the administrative apparatus, and the willing cooperation of the public at large. The proposal of the Law Commission to introduce a List System of election which is also known as proportionate representation, for an additional 138 seats of the Lok Sabha is a welcome step. I say so because the system of First past the post is mostly a gamble. It does not always represent the people's will, especially in a multiparty system like ours. Facts prove that in most constituencies the winning candidates gets elected on the basis of a minority of the votes cast resulting general nationwide misrepresentation. Many of our parties represent democratic opinion of specific sections of our society. However their share in the election bodies does not always correspond to their vote share. This creates a sense of non-involvement among them. (407 words)

Passage No 17

Another thing I want to say is that we want an ideal to be set up for the nation. It is only the performance of this august body which can set an ideal or an example for the people to follow. I do not say that people who have no respect for law and those who have committed any offence should be saved or protected. But then, it can be done only by utilizing the funds of the people collected from the people in a proper manner so that we can positively make progress. For this purpose, I would request the Honorable House that if some amendments to the Rules of Procedure are necessary, we must think of it and we must make the principles and the rules such that the House is not disturbed, or no disturbances are created every day and our time is not wasted. Another aspect to which I would draw the attention of the Honorable House through you is that economy is one of the most important factors, and economy has to be effected by us also. I was reading the Comptroller and Auditor General's Report for the year. I find that crores of rupees have not been utilized for years together. During the period a leader of the Opposition Party was Minister of Industries what was done has to be looked into. I would draw the attention of the Honorable House to the fact that if you read the whole book, you will find no manual of accounts no statements and no documents reconciling the actual expenditure made and nothing could be done.

You will find in this a large number of such items involving crores of rupees. This has affected the economy of this country. What has been done about it? I would make a submission that, wherever you find such wastages of money in those cases a very stringent view has to be taken and those persons who are guilty must be punished individual responsibilities must be fixed. That is why every time we are finding this criticism in this august House that the public enterprises are not making any profit, they are running in loss. It is must the guilty must be punished because we are wedded to the principle of socialism and we want the poorer people of this country to come up. But with this sort of performance it is impossible. (402 words)

Passage No 18

Learned advocate for the petitioners who were some of the respondents before the Tribunal and also the candidates in the recruitment process, would submit that the impugned order does not expressly declare Clause No.22 of the advertisement to be inconsistent with the recruitment rules. He would submit that so long as this clause was found to be in consonance with the Recruitment Rules, the Tribunal could not have intervened. The Tribunal merely expected the State Government to modify the Recruitment Rules and even issued a direction in the operative part which is indicative of the fact that even it felt the need for modification of the Recruitment Rules. If this is so, the Tribunal could not have struck down Clause 15 which was in accordance with the Recruitment Rules. He would submit that even if the Tribunal was of the view that the executive instructions issued under Article 73 of the Constitution would supersede the Recruitment Rules framed under Article 309, the only direction it could have given was to modify the Recruitment Rules and the entire advertisement ought to have been then quashed and set aside. The directions given by the Tribunal are self-contradictory, inasmuch as, it allows the recruitment process to go on with a modified clause and simultaneously directs the State Government to consider modification of the Recruitment Rules which reliefs cannot go hand in hand. Mr. Kale would submit that executive instructions under Article 73 cannot limit the operation of the Recruitment Rules framed under Article 309. The learned AGP also submitted that since the advertisement and Clause 12 was strictly in accordance with the Recruitment Rules, till the time those were not modified, no fault could have been found with the clause which expressly provided preference to be given to a candidate in case the scores were equal. He would submit that it is not the case of the respondent Nos.1 to 12 or it is not the observation of the Tribunal that the clause was not in accordance with the rules without which there could not have been any challenge to the recruitment process. The learned AGP would submit that pursuant to the order under challenge, the State Government has issued a corrigendum in obedience to the directions and has now modified the clause so as to provide for preference to be given to the candidates while preparing the select list and it is only after all the candidates are placed above in the select list. (412 words)

Passage No 19

Thus, the sanctioning authority has to apply its own independent mind for generation of its satisfaction for sanction. The mind of the sanctioning authority should not be under pressure and the said authority has to apply his independent mind. On the basis of the evidence, which came before it, an order of sanction should not be construed in a pedantic manner. However, purpose for which an order of sanction is required is to be borne in mind. In fact, the sanctioning authority is the best person to judge as to whether public servant concerned should receive protection under the said Act by refusing to accord sanction for prosecution or not. Thus, the application of mind on the part of the sanctioning authority is imperative. The order granting sanction must demonstrate that he or she should have applied his or her mind while according sanction. After going through the evidence of Kotwal and sanction order, it shows that he has not disclosed on what basis he came to the conclusion that the sanction has to be accorded. The sanction order only shows that upon reading the papers of investigation, he found his opinion and accorded the sanction. He is unable to recollect whether the papers forwarded to him were containing the complaint filed by the accused against the informant. He is further unable to recollect that the accused had made a report showing involvement of the informant in illegal construction on the land of grampanchayat and action was taken against him. It is apparent that PW3 has accorded the sanction on the basis of draft sanction order. The grant of sanction is a serious exercise of powers by competent authority. It has to be apprised of all the relevant materials and on such materials, authority has to take a conscious decision as to whether facts would reveal commission of offence under relevant provisions. No doubt, an elaborate discussion is not required. However decision making on relevant materials should be reflected in the order. Thus, perusal of the evidence of PW3 shows that the sanction order nowhere reflects that which document was considered by the sanctioning authority and on what basis the sanctioning authority came to the conclusion that the sanction is to be accorded to launch the prosecution against the accused. The another question, which arises for consideration is whether the prosecution has proved the demand and acceptance of the bribe by the accused from the informant and whether interference is called for in the judgment and order of conviction impugned. (420 words)

Passage No 20

It is settled law that where the assessment is sought to be reopened after the expiry of a period of four years from the end of the relevant year, the proviso to Section 147 of the Act stipulates a requirement that there must be a failure on the part of the assessee to disclose fully and truly all material facts necessary. Since in the case at hand, the assessment is sought to be reopened after a period of four years, the proviso to Section 147 of the Act is applicable. It is also settled law that the Assessing Officer has no power to review an assessment which has been concluded. If a period of four years has lapsed from the end of the relevant year, the Assessing Officer has to mention what was the tangible material to come to the conclusion that there is an escapement of income from assessment and that there has been a failure to fully and truly disclose material fact. After a period of four years even if the Assessing Officer has some tangible material to come to the conclusion that there is an escapement of income from assessment, he cannot exercise the power to reopen unless he discloses what was the material fact which was not truly and fully disclosed by the assessee. If we consider the reasons for reopening as regards provision for doubtful debts, we would first of all observe that the Assessing Officer records Since the provision is made on account of bad and doubtful debts which is not an ascertained liability as per section of the Act, the same need to be added which the assessee has failed to do so. This indicates non application of mind by the Assessing Officer while recording the reasons and also by the approving authority which granted approval under Section 151 of the Act. Further vide letter dated 17th December, 2010, petitioner filed details of expenses above Rs.10 lakhs with respondent no.1 which included details of provision for doubtful debts. Based on these facts, there is no failure to disclose any material facts necessary for the assessment so as to invoke provision of Section 147 of the Act after a period of four years from the end of the relevant assessment year. The details have been filed in the course of the assessment proceedings and respondent no.1 after examining the details has computed the income under regular provisions of the Act and profit under Section of the Act. (413 words)

Passage No 21

I am sure the Government which has followed particular course of action, which has been the consistent national stand as far as India is concerned, is conscious as far as the interest of India's agriculture is concerned and India's industry is concerned. The agricultural negotiations have not proceeded significantly in the past five years. Now there is a considerable amount of pressure on us to yield. The Indian position in short has been that unless our agricultural farmer is really a sustenance farmer he cannot compete with the subsidised farming as far as the United States is concerned, the European Union is concerned and the other subsidising nations are concerned. We must bear in mind that as far as these areas are concerned nowhere in the world foreign policy and trade policy necessarily go together. Europe and United States are occasionally raised against each other as far as trade policy is concerned; though they may have the best of political and diplomatic relations with each other. Because ours is a sustenance farmer, he cannot compete this huge amount of subsidies that the developed countries give, which must come down. The Government of India in the last five years has pursued this stand and pursued it vigorously. India is being blamed by the developed countries for not allowing the deal to go through. On the contrary, we are being told that you reduce your tariffs so that the subsidised agriculture can come and invade the Indian market. Even if it did not invade the Indian market, it will, at least prevent our surplus from going into the global market, compelling our agricultural produce to be dumped in our own markets and depress our prices. So those subsidies really are a death knell as far as the Indian farmer is concerned.

Without any significant reduction in those subsidies, by just concealing them into the environmental category in the green box, today there is an effort to get us to fall in line and sign that deal. I wish to caution this Government that this is one area where the Government would not yield and stand by what our conventional Indian position is. The climate change negotiations are currently on. There also, the effort is that the developed countries have already had and tasted the fruits of development. They have a huge amount of industrialised growth and therefore, their emissions or what pollutes the environment is far higher than us. (407 words)

Passage No 22

The Trial Court, on the basis of medical evidence held that death of Seema was homicidal. As to the culpability of the accused for an offence under section 302, the Court held that in the light of the evidence of father and mother of deceased Seema, it was clearly established that the appellant mother in law of the deceased was harassing Seema. The Trial Court also observed that it was did not involve her mother in law but it was because of the fact that she was asked by her mother in law not to implicate any member of the family of the appellant. The Trial Court noted that after the first dying declaration was recorded, the parents and inmates of deceased Seema had reached the hospital. The deceased could get courage to state true facts and again the Special Judicial Magistrate was called and the second dying declaration was recorded in which she disclosed true and correct facts.

The Trial Court also noted that the Special Judicial Magistrate was conscious of the fact that in the first dying declaration, she had not involved any family members of her in laws. A specific question was therefore put by him as to the reason why she had done so and the deceased had replied that it was because of her mother in law who asked the deceased to do so. The Trial Court therefore held the conduct of deceased Seema as natural and the second dying declaration reliable which could be treated as basis for holding the appellant guilty. The Trial Court also observed that from the evidence of PW2 father of the deceased and PW3 mother of the deceased, it was proved that Seema was ill-treated by her laws and particularly the appellant mother in law. The Court also observed that PW5 had no axe to grind against the appellant. PW5 stated that on being questioned, Seema stated that she was burnt by her mother in law throwing burning kerosene lamp on her but she had not stated so in the previous dying declaration because of the insistence of her mother in law. On the basis of evidence of parents of deceased, the Trial Court convicted the appellant. The learned counsel for the appellant contended that both the courts have committed an error of law in relying upon the second dying declaration. It was contended that the first dying declaration was correct and the deceased had stated true facts in the said declaration. (413 words)

Passage No 23

At the first instance, the learned counsel for the appellants strongly argued that there was perversity and illegality involved in the decisions rendered by the Tribunal which was affirmed by the High Court. It was also argued on behalf of the appellants that a fair and reasonable opportunity of hearing was afforded to the respondent and the charge sheet did not suffer any discrepancy as it sufficiently enabled the respondent to defend his case. Furthermore it was contended that the charges framed were not vague and were serious cases of misconduct. It was further argued that the Tribunal and the High Court had appreciated the evidence wrongly and it would not be in the interest of appellant Company to keep a workman who has developed the habit of abusing superiors with filthy language and disobeying their orders. Accordingly the learned counsel for the appellants prayed for setting aside the judgment of the High Court as well as of the Industrial Tribunal and restoration of the order of dismissal passed against the respondent.

The learned counsel for the respondent contended that the respondent was denied a fair hearing and was dismissed in violations of the principles of natural justice. It was argued on behalf of the respondent that the charge sheet did not contain the specific abusive language and thus it was difficult for him to defend his case. He further argued that the respondent was not furnished with the list of witnesses and copy of the documents to be treated as evidences and materials on which the management was to rely and he was also denied a chance of being represented by a lawyer or a representative who is equipped with legal background during the enquiry proceedings. Learned counsel for the respondent also contended that the appellants had not presented before the Court any documentary evidence to prove that he had on earlier occasion misconducted himself and was thus in a habit of disobeying his superiors. The learned counsel also strongly argued that the work assigned to the respondent was not part of his duty as he was appointed to carry things from one place to another outside the shop. Finally, the learned counsel for the respondent argued that since the concurrent findings of fact arrived at on the question formulated here in above. It is not open to this court to exercise its discretionary power under Article 136 of the Constitution to interfere with the impugned order on such concurrent findings of fact. (414 words)

Passage No 24

Once upon a time, in a quaint village nestled amidst lush green forests, there lived a simple and humble woodcutter named Thomas. He was known everywhere for his kind and compassionate nature. Thomas toiled hard day after day, cutting firewood to make a living for himself and his family. Despite facing numerous challenges, he never lost his inherent goodness. One chilly winter morning, as Thomas ventured deeper into the woods to gather firewood, he came across a shivering and injured bird lying on the ground. His heart melted with pity, and he couldn't bear to see the helpless creature suffer. Gently, he picked up the little bird and cradled it in his rough but caring hands. He brought it home, made a cozy nest, and nursed it back to health with tender love and care. As days passed, the bird regained its strength and, to Thomas's amazement, started chirping joyfully every morning. The tiny creature had become fond of its saviour and would follow him around the village wherever he went. The villagers were in awe of the deep connection between Thomas and the bird, for they knew that it was the result of the woodcutter's compassionate heart. One summer day, while Thomas was cutting wood near a riverbank, he heard a faint cry for help. He quickly rushed towards the source and found a young boy struggling in the fast-flowing river. Without a second thought, Thomas plunged into the water, risking his own life, and rescued the boy from drowning. The boy's family was immensely grateful to the woodcutter, and news of his heroic act spread like wildfire. Thomas's reputation as a kind hearted hero grew, and people from neighbouring villages sought his advice and assistance in times of trouble. He was always willing to lend a helping hand, whether it was mending a broken fence, aiding the elderly, or comforting the sorrowful. His genuine compassion knew no bounds. Despite receiving accolades and recognition, Thomas remained grounded and never let fame get to his head. He believed that kindness was a duty and that one should never expect anything in return. He continued his simple life, spreading smiles and warmth wherever he went. One day, as Thomas was resting under the shade of a tall oak tree, an old woman approached him. She was frail and tired, carrying a heavy bag of groceries. Thomas rose from his seat and offered to carry her burden all the way to her doorstep. (411 words)

Passage No 25

Digital marketing refers to the use of digital channels, such as social media, email, search engines, and websites, to promote a product or service. By leveraging the power of digital channels, businesses can connect with customers more effectively and drive growth and success in the digital age. Digital marketing has become an integral part of modern business strategies. It offers businesses the opportunity to connect with their target audience, establish brand visibility, and drive growth in the digital age. Through various components such as websites, SEO, content marketing, and social media, businesses can create engaging experiences for their customers and effectively promote their products or services. In today's digital age, businesses are increasingly utilizing digital marketing strategies to effectively reach and engage with their target audiences. Digital marketing refers to the use of digital channels and technologies to promote products, services, and brands. It encompasses various components and tactics that work together to achieve marketing goals. This essay explores the key components of digital marketing, its advantages, common tactics, and its impact on modern businesses. Components of Digital Marketing: Digital marketing involves several components that businesses utilize to establish an online presence and effectively engage with their target audience. Through various components such as websites, SEO, content marketing, and social media, businesses can create engaging experiences for their customers and effectively promote their products or services. The advantages of digital marketing, including increased reach, targeted advertising, measurable results, and cost-effectiveness, make it a powerful tool for businesses of all sizes. These components include: Website: A well-designed and user friendly website serves as the digital storefront for a business. It provides information about products, services, and brand identity, acting as a central hub for all digital marketing efforts. Search Engine Optimization SEO: SEO focuses on optimizing a website's content and structure to improve its visibility in search engine results. By implementing relevant keywords, creating high quality content, and optimizing website performance, businesses can increase organic traffic and improve their search rankings. Content Marketing: Content marketing involves creating and distributing valuable and relevant content to attract and engage target audiences. This can include blog posts, articles, videos, info graphics, and social media content. Effective content marketing helps establish a brand's expertise, build trust, and drive customer engagement. Social Media Marketing: Social media platforms provide businesses with an opportunity to connect with their target audience, promote products or services, and build brand awareness. (400 words)

Passage No 26

In the world of education, effective research skills play a vital role in empowering students with the knowledge and information they seek. Whether writing an academic paper, preparing a presentation, or conducting a personal inquiry, having the ability to source, analyze, and cite information is crucial for success. Sourcing information is the first step in the research process. Nowadays, with the internet at our fingertips, accessing vast amounts of data has become easier than ever. However, not all sources are reliable and accurate. It is essential to learn how to distinguish credible sources from unreliable ones. Credible sources, such as academic journals, peer-reviewed articles, and reputable websites, provide accurate and well researched information. On the other hand, unreliable sources, like biased websites, unverified blogs, or forums, may contain misleading or false information. As students, we must be vigilant and selective when choosing sources to ensure the quality and reliability of the information we use. Once we have gathered relevant information, the next crucial step is analyzing the data. Analyzing information involves critically examining the content, identifying key points, and drawing meaningful conclusions. It is essential to read and reread the material carefully, highlighting important details and taking notes to aid comprehension. When analyzing data, consider the author's credentials, the publication date, and any potential bias in the content. Engaging in critical thinking enables us to understand the material deeply and draw informed conclusions based on evidence and logic. Citing sources properly is an ethical and academic responsibility. Whenever we use information from external sources in our work, it is essential to give credit to the original authors or creators. This not only acknowledges their contribution but also prevents plagiarism, a serious academic offense. There are different citation styles, such as APA, MLA, and Chicago, each with its own guidelines for referencing sources. Learning how to cite sources correctly can be a bit daunting at first, but practice and familiarity will make it easier over time. Many academic institutions provide resources and guides to help students understand and apply proper citation practices. In addition to sourcing, analyzing, and citing information, another critical aspect of effective research skills is organizing and managing the gathered data. Keeping track of sources, notes, and ideas is essential to maintain coherence and clarity in our work. Creating an outline before starting a project can be immensely helpful, as it provides a roadmap for the research process and ensures that all relevant points are covered. (408 words)

Passage No 27

Infrastructure is the network of power, telecom, ports, airports, roads, civil aviation, railways, and transportation in a country. Its importance in the development of a country cannot be over-emphasised. As a matter of fact infrastructure is the lifeline of the economy of a country. All developed countries have adequate infrastructure so that all the activities are executed efficiently, smoothly in time. On the other hand, all poor countries have little infrastructure. The plans of these countries target the building of adequate infrastructure to put their economies on a high growth path. Power is an essential input for economic development and improving the quality of life of people. Development of conventional forms of energy for meeting the growing needs of people is the responsibility of the government. In the pre-independence period, the power supply was mainly in the private sector and that too restricted to the urban areas. With the formation of State Electricity Boards during the Five-Year Plans, a significant step was taken in bringing about a systematic growth of power supply for industries all over the country. A number of multi-purpose projects came into being with the setting up of hydro, thermal and nuclear power stations. India at present is at the threshold of becoming a developed country. Its economy has been growing at a high GDP growth of over 8 per cent per annum. With the increase in population the demand for goods and services is increasing every year. The number of dwelling units in big and small cities is increasing. There is more demand for power to run home appliances in these as well as existing units. To meet this ever increasing demand we need to build a huge power infrastructure. That is why India has entered into a nuclear deal with America whereby the sole superpower in the world shall provide us with nuclear technology. Nuclear energy will be harnessed to be used for peaceful purposes. The transportation infrastructure includes roads, vehicles, railways, tracks, trains, ports, airports, ships and vessels. Road transportation is perhaps the most important because the railway tracks cannot be laid everywhere. The roads are the means by which the movement of people and goods from one place to another is ensured. Millions of people move out of their houses everyday to reach their places of work, trade or business daily. They not only generate income from working but also fulfil the needs of others. (403 words)

Passage No 28

Each year, new technologies hold the promise to alter the way we think and learn. Computers are prevalent everywhere, and they are making their way into school systems around the country. It is obvious that there is a demand for technological instruction in high school and college. However, the question of if computers should be implemented into early childhood classrooms is still prudent. With computers all around us, it is inevitable that children will be exposed to them, and they will eventually be facilitated into their daily lives. The purpose of this research paper is to explore the advantages, disadvantages, and methods of integrating computers into the early childhood classroom. Early childhood experiences should maximize young children's overall growth and development. Their eyes should be opened to the wonderment of learning and the pleasures of discovery. Computers can be an important tool to optimize young children's potential, and help aid the learning process. Before deciding to introduce children to computers, it is important to address the potential benefits and dangers the machines have on youths. (Peek and Newby 164) Some people believe that computers should not have a place in early childhood classrooms. They speculate that computers will rob children of their childhood, replace other activities, reduce creativity, and lead to social isolation. It is feared that computers will force them to learn what they are not ready to learn. The machines are often viewed as one more thing to rush young children through their vital childhood years. Whether computers will rob children of their childhood totally depends on how they are used. If children are forced to use computers for lengthy periods of time with drill software, computers could very well rob them of their childhood. On the other hand, if computers are used in appropriate ways that meet children's development level, they can benefit. Computers are found in practically every household today. Everywhere you look, people have access to a Personal Computer, somehow or another. As computers get more advanced, the demand for a better computer gets greater. Personal Computer, machine capable of repetitively and quickly performing calculations and instructions. Designed to be used by a single person, a PC is smaller, less expensive, and easier to use than other classes of computers, such as supercomputers, mainframe computers, and workstations. However, it usually has less computational power. Each year, new technologies hold the promise to alter the way we think and learn. (404 words)

Passage No 29

Democracy is not something readymade and finished. It grows, evolves and passes through stages of failures and unsuccesses. Anti-democratic and un-democratic forces are never absent from any human society. Man is not a perfectly rational animal. Reason and un-reason are in constant conflict. All writers on the subject of democracy have dwelt on the difficulty against which the aims and ideals of democracy have to contest. Socrates and Jesus Christ were victims of a mob-minded majority. In India such monstrous and atrocious customs as the Sati System, untouchability, the caste system, enjoyed popular support for centuries. Rule by a brute majority is not democracy. Sidgewick speaks of a democratic minimum, namely those irreducible and inviolable natural rights which majority rule cannot touch. Democracy is an all-embracing comprehensive system, very carefully and understandingly built-up and modified or liberalised from time to time. England was a democracy pretty old in the 19th century, and yet Macaulay failed to get a Bill passed against child-labour which he wished to be limited to ten hours a day. Monstrous and cruel practices even in England, the mother of Parliaments, were legally permitted for decades and centuries. The novel of Dickens are an eloquent testimony to the cruelties, to the legalised hardship and injustice under which poor men and women and their children suffered in Victorian England. Let us consider some of the conditions requisite for the success of democracy. Our Indian democracy is among the youngest democracies of the world. Since 1947-48 and the first general Elections in India, some crying and glaring facts have come to light. Our soldiers in the land, the naval and air forces are generally very low-paid and not quite well-treated. Our police force is discontented, poorly-paid and highly inadequate in number. Our teachers, except in a few cases, are neither properly trained nor adequately paid. Men appointed as anti-corruption officers are so ill-paid that a small bribe makes them connive at food and medicine adulteration. Our authorities have woefully failed to hold the price-line which is the life-line of the nation and the encourager of bribery and corruption. The major part of the money allegedly spent in the name of our five-year Plans and other public services goes to line the pockets of supervisors and other authorities. None is free from and in a position to resist temptation. Hegel says, "Wars are the outcome of latent wardom" The world is passing through a period of imminent explosion. (408 words)

Passage No 30

The contention of Sri Ramesh Pandey learned counsel for petitioner is that having studied in the school for last 13 years and having secured about 89% mark in standard 10th there was no justifiable reason for the school for not granting admission to the petitioner in class 11. Not taking admission of the petitioner in standard 11 is an act of high handedness and arbitrariness. The father of the petitioner approached the District Magistrate who ordered an enquiry into the matter wherein it was found that the principal had acted in a high handed and arbitrary manner therefore an explanation was called from the School and directions were also issued to admit the student but the Principal of the school had adopted an intransigent attitude and declined to admit the student citing the minority status of the school and stating that admission to standard 11 was not a matter of automatic promotion and it was the discretion of the Principal to admit or deny admission to a student in standard 11 which according to petitioner was arbitrary in nature and hit by Article 14 of the Constitution. The direction of District Authorities had also been ignored by the Principal.

Sri Jai Deep Narain Mathur learned Senior Advocate appearing for opposite parties 8 and 9 submitted that the school was a private minority unaided institution. The admissions upto standard 10th were as a matter of right as they were in the nature of promotion from lower standard to the higher standard. As far as the admission to standard 11 was concerned, it was not as a matter of right as it was not a promotion but was a fresh admission and fresh admission forms were required to be submitted. While taking a decision regarding admission in standard 11 the Principal of the school undertook a consultative process with the teachers wherein the conduct, behavior and assessment of record of the student as also their guardians was considered. In the case of the petitioner it was found that the teachers were unwilling rather adamant not to have to do anything with the father of the student who had been causing enormous problem not on one or two occasions but regularly. He had problems with the ethos of the college and was not able to come to terms with it. He did not want his ward to participate in extra curricular activities which were necessary for the overall development of the student. (409 words)

Passage No 31

Section 71 of the Evidence Act is in the nature of a safeguard to the mandatory provisions of section 68 of the Evidence Act to meet a situation where it is not possible to prove the execution of the will by calling attesting witnesses. This section provides that if an attesting witness denies or does not recollect the execution of the will, its execution may be proved by other evidence. Aid of section 71 can be taken only when the attesting witnesses, who have been called, deny or fail to recollect the execution of the document to prove it by other evidence. Section 71 has no application to a case where one attesting witness, who alone had been summoned, has failed to prove the execution of the will and other attesting witnesses though are available to prove the execution of the same for the reasons best known, have not been summoned before the Court. It is clear from the language of Section 71 that if an attesting witness denies or does not recollect execution of the document, its execution may be proved by other evidence. However in a case where an attesting witness fails to prove the due execution of will as required under clause c of section 63 of the Succession Act, it cannot be said that the will is proved as per section 68 of the Evidence Act. It cannot be said that if one attesting witness denies or does not recollect the execution of the document, the execution of will can be proved by other evidence dispensing with the evidence of other attesting witnesses.

Yet, another reason as to why other available attesting witnesses should be called when the one attesting witness fails to prove due execution of the will is to avert the claim of drawing adverse inference under Section 114 illustration of Evidence Act. Placing the best possible evidence before the Court of consideration is one of the cardinal principles of Indian Evidence Act. Section 71 is permissive and an enabling Section permitting a party to lead other evidence in certain circumstances, but section 68 is not merely an enabling Section. It lays down the necessary requirements, which the court has to observe before holding that a document is proved. Section 71 is meant to lend assistance and come to the rescue of a party who has done his best, but driven to a state. (400 words)

Passage No 32

Sir, I am aware that there is no explicit law at present enabling the Reserve Bank of India or any other institution for direct regulation and supervision of the various payment systems in the country. Approximately, 1500 clearing houses, which are located all over the country, are run by various banks. The clearing houses are clearing paper instruments manually. Only 65 clearing houses have got mechanised clearing system. There is lack of standardisation in their methods of work. Many times, their functions are operationally risk prone. The disturbing aspect is that the Reserve Bank of India does not have powers to regulate them. Yet, there are a section of people who say this Bill is unnecessary. Today, the position is that people are buying cheques which can be encashed in any of the banks when banks are connected electronically. RBI is not in a position to control these functions. The central Bank had mooted a proposal that a separate organisation be set up for retail payment system in place of the existing arrangement of clearing houses and the settlement of accounts. Banks are moving towards global market. The level of technology also varies from time to time. When the world is developing into a small spectrum with the tremendous increase clearing funds, there is a need to take up modern technology. One should bear in mind that money is considered as a means of exchange. With internet banking coming into force, money has moved from paper to electronic form. I was astonished to learn that the amount of money movement today is much more than the money that is with various public and private banks. All members of clearing house enter into a contractual relationship with the manager of the clearing house. There is an urgent need, therefore, for keeping our financial market free from legal uncertainty. There is every likelihood that soon private players will enter the field of clearing house transactions. Keeping these things into consideration, an amendment has been circulated now. New innovations and technology in settlement are also very much required. With the advent of private players and new technology, it is suggested to bring forward this comprehensive Bill. This Bill gives legal recognition to the transaction procedures and settlement. This Bill considers paper, cash, cheque, drafts, electronic fund transfer, credit or debit card transfer to be a part of payment as well. (400 words)

Passage No 33

Honourable Speaker, Sir, when this Government was elected for the first term, we promised to make Delhi a global city. It is a matter of privilege for me to announce that we have succeeded to a great extent in this direction. Delhi is known for its development in the last decade. Delhi is known as the 'Green Capital' of the world. It has developed a world class metro. Delhi has emerged as an educational and cultural hub. It is famous for health tourism, beautiful roads and flyovers and public transport. From this year it will also be known as a city of sports and sports infrastructure. A study by a reputed organization reveals that amongst thirty-seven cities across India, Delhi has emerged as the best Indian city in terms of quality of life and living standards. As a result of our efforts, Delhi tops the list based on education and economic environment, ahead of Mumbai and Bengaluru in the country. Sir, Delhi Government took timely action through market intervention for controlling the retail prices of essential commodities. As a result, the retail prices of food items increased in Delhi at the national level. In Delhi, the rate of inflation on the consumer price index for industrial workers was the lowest as compared to other metropolitan cities and at the national level. Mr. Speaker, Sir, the local bodies in States is getting grants from the Centre as per the recommendations of Finance Commission. This financial grant is not being made available to the Local Bodies in Delhi by the Finance Commission. We have set up Fourth Delhi Finance Commission for recommending devolution of funds for the period of next 5 years. Sir, with a comprehensive approach to city development planning, we have initiated a number of reformative measures both in project and programme formulation as well as their implementation, monitoring and evaluation. Taking into account the funds for completion of ongoing projects, I propose to enhance the plan outlay for the current year. Sir, in order to give effect to the Revised Estimates, Supplementary Demands for Grants will be required. I, therefore, seek approval of this House for the Supplementary Demands for Grants. Sir, to improve the quality of Public Transport, we have decided to introduce Low Floor buses and air-conditioned buses. More buses are also being added. We are confident that with this, Public Transport will improve to meet the requirement of the city's growing population. (406 words)

Passage No 34

Madam Speaker, I now come to tax proposals. Taxation is an important factor of social and economic engineering. Tax collections help the Government to provide education, healthcare, housing and other basic facilities to the people to improve their quality of life. It also addresses the problems of poverty, unemployment and development. To achieve these objectives, it has been our endeavour in the last nine months to provide a stable taxation policy and a good tax administration. A very important aspect of our tax administration is the fight against the black money. A number of measures have already been taken in this direction. I propose to do much more. Madam, you will agree, we need to revive growth and investment to ensure that more jobs are created for our youth and the benefits of development reach millions of our poor citizens. We need an enabling tax policy for this. I have already introduced the Bill to amend the Constitution of India for Goods and Services Tax in the last Session of this august House. It is expected to play an important role to transform our economy. It will add a force to our economy by developing a common Indian market and reducing the effect on the cost of goods and services. We are moving in various fronts to implement GST from the next year. The basic rate of Corporate Tax in India is higher than the rates in the other Asian economies, making our domestic industry uncompetitive. Moreover, the effective collection of Corporate Tax is about twenty three per cent. We lose out on both counts, that is, we are having a high Corporate Tax but we do not get that tax, due to excessive exemptions. This has led to litigation and loss of revenue. I, therefore, propose to reduce the rate of Corporate Tax from the present thirty to twenty five per cent over the next 4 years. This will lead to a higher level of investment, higher growth rate and more jobs. This process of reduction has to be accompanied by removal of various kinds of tax exemptions and incentives for corporate taxpayers, which account for a large number of tax disputes. Madam, I wanted to start the reduction of corporate tax rate and elimination of tax exemptions right now. Then, I thought it would be appropriate to give advance notice that these changes will start from the next financial 400 year. (403 words)

Passage No 35

The appellant being aggrieved by the decree for eviction preferred an appeal to the Additional District Judge and since the Court of the Additional District Judge is the final court of fact, we would set out the findings of fact reached by the Additional District Judge in some detail. The Additional District Judge on an appreciation of the evidence came to the following findings. The respondent was about 63 years of age when he filed the suit but that was no ground for saying that he could not bona fide and reasonably think of starting a new business. Though it was stated by the respondent in his evidence that he had in the past carried on business as a dealer in iron and steel materials, that was contradicted by his own witness Ram pal and it was, therefore, evident that the business of dealer in iron and steel materials for which he claimed to require the Bazar shop, was totally a new business for him. The plea of the respondent was that he wanted to make a humble beginning in this new business but even so he asked for possession of the whole of the Bazar shop and not merely a portion of it. The respondent had not led any evidence to show that "he had arranged for necessary capital to be invested or approached Iron & Steel Controller for the required permits" or "made agreements to receive stocks" of iron and steel materials. There was no material on record to establish that the respondent had made preparations from, which inference could be reasonably drawn that, but for possession of the Bazar shop, the respondent was in a position to start the new business. Though the period of two years for which the lease of the Bazar shop was granted by the respondent to the appellant expired on 15th September, 2012, the respondent did not take any steps to obtain possession of the Bazar shop for a period of about two years and it was only in the middle of 2015 that he put forward the plea that he wanted to start business as a dealer in iron and steel materials and required possession of the Bazar shop for that purpose. It is true that the appellant had failed to show that the respondent was carrying on business as commission agent or moneylender, but that did not establish the bona fide requirement of the respondent for possession of the Bazar shop. (411 words)

Passage No 36

On the touchstone of the above said legal preposition we have given our conscious thought on the material available on record. The genesis of the incident alleged in the FIR is altercation between the two child and thereafter reporting it to their families and it has been proved that before a day of the incident there happened to be small fight of the children of two families and with the result after reporting the matter to their mothers they have also exchanged hot words. It is also established that the accused was not present at that time and he returned from the place of his employment in the evening of that day. It is a natural fact that on coming back to home the wife of Arjun would have narrated the incident to her husband. Since the husband was not a witness of the incident, the genesis of the occurrence therefore could not be presumed to know the nature of the previous incident. He might have taken a serious view and acted accordingly. Now it can be safely concluded that it was not necessary for the prosecution to make out the motive rather it is very difficult to meet out as to what was the mental state of the accused. Under the facts and circumstances as stated above the alleged motive could not be said to be unnatural or concocted rather it can be concluded that the previous incident appears to be the genesis of this incident by accused Arjun. On the basis of the above legal proposition, on motive the prosecution case is based on direct ocular testimony and the ocular testimony is found to be unimpeachable and trustworthy. Due to aforesaid reasons the argument of the defence on motive or weak motive has no relevance. The last point raised by the accused appellant that the accused has been falsely implicated in this case due to the alleged rivalry at the instance of Pradhan of the Village. On this point we would like to mention that it is an admitted fact that the village Pradhan had won the election against one who is said to be the near relative of the accused. It is also an admitted fact that the election was over one year earlier to the incident. It is relevant and important that Pradhan has been produced as a prosecution. In his entire evidence nothing has been shown to make out a case of false implication of the accused. (412 words)

Passage No 37

A careful analysis of Sub-section (4) would make it clear that the first part which requires the District Magistrate to convene meeting of the Board for considering the motion of no-confidence against the President is mandatory. The District Magistrate is required to perform a public duty in convening a meeting of the Board for consideration of the motion at the office of the Board on the date and time as fixed by him, he has no choice in the matter. He has to convene a meeting on a date within 40 and 45 days from the date of presentation of the motion to him. The District Magistrate is further enjoined to perform a public duty of selling notice of the meeting to the members; this again is a mandatory requirement of law which must be strictly complied with. The second part of the sub-section lays down the manner required to be followed in sending notices to the members. It lays down that notice of the meeting shall be sent by registered post to every member of the Board at his place of residence. The essence of this provision is to give information to the members to enable them to avail opportunity of participating in the meeting convened for the purpose of considering the no-confidence motion. The first part of the section requiring the District Magistrate to convene meeting and to send notices to the members is mandatory, any disregard of that provision would defeat the very purpose of the meeting, but the manner of service of notice and publication of the same is directory in nature. The purpose of service of notice by registered post and publication of the notice otherwise is to ensure that members should get adequate notice, of the meeting to enable them to participate in the debate over the no-confidence motion at the meeting. That purpose is not defeated if the notice is sent to the members not by registered post but by other methods and seven clear days are given to the members. The legislature never intended that unless notice is sent by registered post to the members the proceedings of the meeting would be vitiated. The legislature, no doubt, stressed that if the two steps as laid down in the sub-section are taken by the District Magistrate, i.e., notice of the meeting is sent to members by registered post at their place of residence and further if it is published in the manner directed by the District Magistrate. (414 words)

Passage No 38

Mr. Chairman, Sir, it is a proud privilege for me to welcome you here. As the Honourable Prime Minister said, you started your political career in 1952. I think that I was still in the school. I do not remember the class when you started your political career. As the Honourable Prime Minister said, in spite of all the constraints, you got yourself involved in active politics. I can understand that it must have been very difficult for you to get yourself actively involved in that. You worked in Rajya Sabha also. After all, Rajya Sabha is the representative body of States. During your membership in Rajya Sabha, you contributed greatly with your experience of working. Today, we see lack of job opportunities in the villages and people migrate to cities. Most of the metropolitan cities have been filled with migration of people from villages. We are proud of you for the initiatives taken by you. A lot of people talk about empowerment of minorities. I would not say that a lot has not been done for minorities, but you were the first Chief Minister in the country to create a State Waqf Board. Apart from that, you also promoted Urdu which is my mother tongue, but I am speaking in English now. You promoted not only Urdu language, but Arabic and Persian languages also. As far as the Family Planning is concerned, you were the first person to start the implementation of the norm of two children in the Panchayat Elections. I wish that we could continue the same at the national level also. If this would have been implemented successfully, then the Prime Minister would have less problem with over population of the country. Sir, the most important thing is that it is also the concern of everybody nowadays, that is, your concern for women and children. Your work for the empowerment of the girl child is commendable. I am sure that while addressing the United Nations Assembly, our Prime Minister must have mentioned in his speech that we should invest in our children because investment in children is investment in our future. Sir, I know that you are a proactive Chairman. The Prime Minister has just now mentioned that he has been associated with you since more than half century. I cannot say the same about myself. I did not have even the association of six months with you. (402 words)

Passage No 39

It has also been submitted by the learned counsel for the appellant that the constructive res judicata is not applicable to the award. The disputes that were raised were not ripe for being referred to arbitration in view of the terms of the contract that the contractor had to raise the dispute before the Superintending Engineer and thereafter, before the Chief Engineer and had to wait till the end of the stipulated period. It has been further submitted that since the period was not over, the claims raised before the Arbitrator could not be raised in the claim petition before the Arbitrator and as such, the second award made by the Arbitrator cannot be said to have been barred by res judicata as provided in Section 11 of the Code of Civil Procedure. Neither case for review nor any sufficient cause has been made out for exercising the power of review under Section 114 of the Code of Civil Procedure. The High Court was right in holding that the order of review was unwarranted and directed the Arbitrator to dispose of the reference in accordance with law. In view of the provisions of Section 41 of the Arbitration Act, it specifically provides that the provisions of the Code of Civil Procedure shall apply to arbitration proceedings. Contractor has not raised all his claims. The contractor could have raised all his disputes arising out of the contract at that time, but the appellant chose to take only some of the issues arising from the said breach of contract before the Arbitrator. He should be deemed to have surrendered those issues and he is debarred from raising those issues in a subsequent claim petition made before the Arbitrator. As per agreement, the rates will not be enhanced if they are agreed once. Department is not bound to pay the claimant a revision of schedule. It has been further submitted by the learned counsel on behalf of the respondents that the appellant was not entitled to an increase in the rates as he claimed increase with the agreement and the claim that has been made is untenable. The case was remanded to the Arbitrator and the question is that whether it is sustainable or not. The Trial Court set aside the award and remitted the same to the Arbitrator for making a fresh award. On an application for review, the Trial Court set aside the order and passed a decree in terms of the award. (412 words)

Passage No 40

It is not an easy matter to give an exact definition of the efficient secretary, but I will deal with the question to the best of my ability. She should have speeds of at least one hundred and twenty words a minute in shorthand and sixty words a minute in typewriting and have had a good education. The ability to use the English language correctly is a valuable asset. It would be useful to her employer if she had a knowledge of accounts and could do arithmetic. So far as experience is concerned, she should have spent at least two years as a shorthand-typist. This would ensure that there would be no worries about the work of shorthand-typing. Turning to the personal qualities two of the main items are tact and discretion. These qualities are of very great importance. This type of work involves dealing with matters which would be of interest to other people she should not discuss her employer's business outside the office, and if, when questioned by an outsider, her knowledge of a subject appears to be limited. It is far better that this should be the case than that she should try to answer the question. So far as common sense is concerned although it does not appear as a school subject as girl should use her common sense in whatever work is allotted to her. Loyalty to an employer calls for the sacrifice of one's time when work is required to be done within a certain period the shorthand typist could leave a better over until the following day if the days' time had run out but the trained person knows the importance of her work and shows her loyalty by finishing it when required. An equable temper is another person quality which is of great importance. The secretary should be ready to accept blame but only if it is deserved. It is essential that she should be punctual and this quality is of very great importance throughout our life. In whatever we may be doing if every employee decided to be ten minute late each day production would be cut to such an extent that some of the large firms would lose thousands of rupees per annum. The private secretary should be able to do much of work usually done by her employer. He wishes to delegate some of his routine work to her. (400 words)

Passage No 41

Unfortunately, come more easily for entertainment perceived as popular with wide reach. So we have a glut of the same kind of on most channels even as serious kind of music, dance, drama, documentaries or of concerns are minimal because advertisers do not consider these to be widely watched. This approach seriously limits the scope of media in disseminating cultural awareness and values. Advertising is a way to showcase one's products or services and offer consumers a vast choice in terms of what they are offered and what they can choose to buy. For the consumers, advertising offers them a choice to get at the best in the market at the best price. Today, it is unimaginable to expect people, especially in urban areas, to spend their money buying products of which they haven't heard a thing. People know what is in the market and then choose what they want. Nothing can be more satisfying than this, for then one gets his or her money's worth. But advertising has been not only a boon, but also a bane in many ways. Advertising relies on consumerism to succeed and consumer's judge by materialistic standards. Moreover, successful advertising means emerging triumphant in the face of tough competition, often without consideration of high standards or aesthetic tastes. Advertising being crass and opportunistic in its very basis, the overemphasis on advertising today is a bane. Advertisers tend to appeal to popular tastes to appeal to a larger section of the population. Images of sex and violence are used to attract viewers' attention-a kind of negative appeal is produced to sustain interest. Products become known are resorted to when advertising, and with time no one objects to the trend. We come across the different types of advertisements in our day-to-day life. They have invaded every aspect of our day to day dealings, our conversations, our thoughts and to a certain extent control our behaviour as customers and consumers of goods and services. Advertisements stare and scream at us from every street corner, every newspaper, every magazine, every hoarding, every stall or shop or showroom to walls of every public building, vehicle, radio and television. They don't even spare our computer screens when all we are interested in is checking our mail or even simply browsing through. The world has suddenly become advertisement conscious so much so that at night the city lights up with thousands of neon glow signs proclaiming, capturing and demanding our attention. (410 words)

Passage No 42

Freshwater is essential for the survival of human beings, animals, and a vast majority of living beings on this planet. Freshwater is found in glaciers, rivers, lakes, and ponds. Out of these, rivers are the most accessible to people and thus, it is no wonder that most of the ancient civilizations like those in Egypt, Mesopotamia, China, and India, developed around major rivers. Rivers also have a lot of religious and cultural significance in many different cultures. And yet, today, our rivers have become severely polluted and contaminated. River pollution is any change in the physical, chemical, or biological properties of river water that has a detrimental effect on the river ecosystem as well as the living beings dependent on the river. Many industries, factories, and refineries dump their waste and industrial by-products in the nearby rivers. Domestic waste like sewage is also carried to rivers through the drainage systems. When it rains, chemicals from fertilisers, insecticides, and pesticides leach from the fields and run off to rivers and streams. In many villages, slums, and suburban areas, people still wash their clothes, dishes, and animals in the river water. They bathe and clean themselves in rivers. The rivers that once contained clean and refreshing water are now contaminated with nitrates, phosphates, plastics, zinc, lead, copper, and mercury. These pollutants have the capability to kill fishes and other creatures that live in the water. They can disrupt aquatic ecosystems. Water from rivers is also used as drinking and cooking water by people. Although there are water treatment plants in cities, in most villages and towns, people use untreated water which negatively impacts their health and well-being. Polluted water can cause typhoid, cholera, hepatitis, and various other diseases. Those who consume fish and other creatures living in these polluted rivers can also get food poisoning as the fishes contain toxins harmful to human beings. Keeping the rivers clean is very important. Municipalities in cities, as well as small towns and villages, should keep a check on the condition of rivers and install sewage treatment plants for domestic waste. Plastic and other waste materials should be disposed of properly so that they don't end up in rivers. Governments should regulate industrial waste management standards and make sure no toxic or untreated waste makes its way to rivers. There should also be awareness programs to make people aware of the consequences of river pollution. It is our duty to keep them clean. (408 words)

Passage No 43

Having a healthy lifestyle is all about choosing to live your life in the healthiest way possible. There are a few things you have to do to start living your life in this way, i.e. the healthy way. This means doing some amount of exercise daily, such as jogging, yoga, playing sports, etc. Adding to this, you must also have a balanced and nutritional diet with all the food groups. It would be best if you were taking the right amount of proteins, carbohydrates, vitamins, minerals, and fats to help you have a proper diet. Grouped with these two essential aspects, a healthy person also maintains the same sleep cycle, which should consist of around 7- 8 hours of sleep.

However, we must remember that a healthy lifestyle not only refers to our physical and mental health. Maintaining a balanced diet, exercising daily, and sleeping well are essential parts of a healthy lifestyle. But feeling happy is also a big part of a healthy lifestyle. To enable happiness, thinking positively is a must. When a person does not feel happy or good about themselves, they are not entirely healthy. Thus we must do our best to think positively so that we can feel happy rather than sad. We have talked about what all entails a healthy life, so now we must speak of what all does not. There are several things that one must avoid in order to live a healthy lifestyle. These include the kind of practices and habits that are harmful to us and also to the people around us, i.e. society. Such practices and habits include gambling, smoking, drinking, illegal drugs, or any other things that can turn into an addiction. These habits are harmful to not only you but for all the people around you, as addiction causes unhealthy attitudes and behaviours. Other unhealthy practices include skipping meals and eating junk food. The benefits of a healthy lifestyle are manifold: living a healthy life allows you to live longer, which means that you get to spend more time with your family. Exercising daily will enable you to release endorphins and helps you feel happier. Regular exercise also improves the health of your skin and hair, bettering your appearance as well. Healthy lifestyles also primarily reduce your risk of life threatening diseases such as cancer, diabetes, etc. and also reduce your susceptibility to cardiac arrests. (400 words)

Passage No 44

There is yet another argument raised by the learned counsel about the witness Kailash turning hostile as noted above and it does not surprise us that a witness has turned hostile who could have corroborated the entire episode but the same does not make any difference in as much as one of the other witnesses Raju named in the FIR was also not produced. Learned counsel for the appellant stressed that this also further adds to a serious doubt about the presence of the eye witness and there is no explanation as to why Raju was not produced. In our opinion non-production of a nominated witness does not amount to a proof that the incident is false. The defence on behalf of the appellant did not bring on record any such witness that they may add to the theory of reasonable doubt that is sought to be advanced by the learned counsel for the appellant. After having exhausted the arguments on the merits of the appeal, both the learned counsel speaking for the accused-appellants virtually narrowed down their submissions on the question of sentence. Accordingly, the nub of the appeal in hand is the quantum of sentence, which is liable to be awarded to the accused appellants. In order to answer the question regarding the quantum of sentence, which is liable to be enforced against the accused-appellants looking into the nature of the criminality committed by them, it will be prudent to discuss in brief the meaning and impact of the words knowledge and intention in relation to section 304 Part I as well as Part of IPC.

We have come across judgments relating to the interpretation of the words knowledge and intention and the distinction between the two while proceeding to consider the sentencing of the convicts by the trial court and the assessment of the evidence in order to appreciate the argument on behalf of the appellants that the appellants deserve a lesser sentence in terms of Section 304 of the Indian Penal Code. There are a large number of cases that are available on the issue but in order to mention a few that meet the point, we begin with the judgment in the case. As to understand the distinction referred to above the relevant paragraphs of the said judgment are paragraph nos. 26 to 30. The essence of the said paragraphs contained within its fold, reflects that intention. (402 words)

Passage No 45

It is urged by him that the High Court has fallen into error by opining that there was no justification to exercise jurisdiction under Article 226 of the Constitution of India whereas the facts stated warranted deletion of such an observation by the DRAT as a tribunal has no jurisdiction to grant such liberty and especially, when a settlement between the borrower and auction purchaser had been arrived at. Learned counsel would submit that the DRAT had really not addressed to any issue and after recording a settlement in a most brief manner, recorded the observations which really deserved to be quashed by the High Court. It is further canvassed by the counsel that the High Court should have taken note of the fact that the order passed by the DRAT had already been complied with and it was absolutely unnecessary to drag the bank to a further litigation which is contrary to the spirit of Act and the purpose of Recovery of Debts due to Banks and Financial Institutions Act, 1993. It is also contended that the DRAT failed to take note of the prayer made by the appellant therein and for no important reason the matter was kept pending for more than four and half years.

The learned counsel appearing for the respondent No 1 contended that he had paid the dues of the bank within the time fixed by the Drat and thereafter he had also transferred the property in favour of a third party due to financial difficulties. In essence submission of learned counsel is that putting the clock back is likely to cause serious loss to him. The learned counsel appearing for the auction purchaser submitted that on the basis of the liberty he had already filed a suit in the Delhi High Court and is entitled to pursue the remedy because of action was taken in hot haste in by the bank in putting the property into auction without indicating that litigation was going on between the borrower and the bank. It is urged by him had the said fact was made known the third respondent would not have participated in the auction. It is argued by him that his claim for damages cannot be nullified the decision of the High Court. Before we dwell upon the jurisdiction of the DRAT to give such a liberty to the auction purchaser we think that it is absolutely imperative. (403 words)

Passage No 46

I am very glad that we are all meeting here on this happy occasion, and I am also glad that I am asked to address you. Now that you are all conferred with degrees, I wish you success in your life. At present there is a general complaint that the universities are failing to produce able young men and women who can serve the country without self-interest. I have been a teacher for over forty years of my life. Being acquainted fully with the functioning of universities, I would like to explain clearly the real factors that are responsible. University is essentially a corporation of teachers and students. The relations between the two have been of a scared character. The kind of education that we provide to our youth is determined mostly by the kind of men and women we secure as teachers. At present the condition of teachers is deplorable. The university teacher should be so paid as to enable him to live in comfort, if he is to devote himself to learning, teaching and research. As they are low paid, best intellectuals are seeking attractive jobs elsewhere and they are not willing to work as teachers in universities. Every attempt should be made to draw a good number of able persons into the teaching profession. I hope the university service will become as attractive as the All India Services, for that is the only way to recruit and train some of the ablest persons for the universities. It is also necessary to select such of the persons as teachers who have love for the subject they have to handle. Securing of a few able teachers is not sufficient. Their number must be proportionate to the number of students. The accommodation in the colleges is insufficient. Class rooms which can normally accommodate thirty students have now to accommodate five times the normal number of students. It is no doubt true that such over-crowding is not conducive to the students to get adequate tuition and moral guidance. Some of the educational institutions have become commercialised and adopt the shift system as in factories. These circumstances do not allow students to express themselves i.e. to take part in games etc. and to have real contact with the teachers, which is much better than a long course of study. It is therefore necessary that our colleges should have restrictive admissions, have adequate staff, and there is living communication across the table with a wise teacher. (413 words)

Passage No 47

I am happy to be here today to inaugurate the Conference of Power Ministers of the States. This Conference assumes importance in view of the fact that power shall play a defining role in India's socio-economic development in the twenty first century. Our expanding industrial base, increasing agricultural demand and galloping domestic requirement necessitate rapid enhancement of India's total power generation capacity. More importantly, we should bear in mind that power and energy production as well as management is crucial to our national security concerns. A country that is self-sufficient in power and is not burdened by energy shortages is a secure country. If we look back at the performance of the power section in the past fifty years, we will find that the growth of this sector has been impressive. From a little over thousand Mega Watts, our total production today has gone up to around hundred thousand Mega Watts. This is no small achievement. However, despite this impressive growth, we continue to face power shortage. In the Eighth Plan period, we could achieve only a little above half the target we had set ourselves. In the Ninth Plan period, we are likely to add roughly two-thirds of the additional capacity we have targeted. The poor financial health of our State Electricity Boards which do not have adequate private sector investment in the power sector, are largely responsible for this inability to meet targets. In order to meet the requirements of the opening decades of the new century, we have to add more than a lakh Mega Watts during the Tenth and Eleventh Plans. To achieve this target, we would need around Rupees one lakh crores, but the resources that are likely to be available would be about only a one third of that amount. Our Government has listed the restructuring and reforming of the power sector as a priority initiative. We have already taken several measures in this regard. We have been emphasizing on the development of hydel power, especially by developing projects in the North-East that have immense potential. We are also committed to strengthening the National Power Grid and delinking transmission and distribution from generation so that we can ensure both reliability and quality of power to customers. We need to take a hard look at the financial health of our Electricity Boards. Of the twenty State Electricity Boards, eighteen have a negative rate of return. (400 words)

Passage No 48

The question still remains whether in the present case there was such a choice available or not. According to Mr. Singh, learned Senior Advocate, the case of the respondent would be clearly covered by the provisions of the Act and not under the Scheme at all. Similar submissions were also advanced on behalf of the appellant before the High Court, as noted by the Single Judge. However, the submissions were rejected after placing reliance on Section 4(5) of the Act. We must, therefore, see what exactly has been provided for in the Trust Deed, Scheme and the Rules framed thereunder. The Trust Deed was executed for the purpose of providing gratuities to the employees of the company under the Payment of Gratuity Act. Clause 15 of the Trust Deed casts an obligation on the trustees to provide payment of gratuity upon termination of service or upon death or retirement of service of the Member as provided in the Rules of Scheme Rule 6(b) of the Rules clearly stipulates that notwithstanding the Scheme of the Company, if any member is covered by the Act, the amount of gratuity shall be calculated in accordance with the provisions of the Act. Similar thought is expressed in the Appendix to the Scheme which prescribes the rates at which the gratuity is to be paid. The Scheme thus divides the employees in two main categories. First, the employees to whom the Act applies and with respect to whom the amount of gratuity shall be calculated in accordance with the provisions of the Act and as per the rates prescribed by the Act; the Second category of employees are those to whom the Act does not apply. According to said Rule 6(b) and Appendix, the calculation of amount of gratuity at the rates prescribed in the manner laid down in the Appendix, is to be done only in the case of employees in the Second category. The intent of the Trust Deed and the Scheme is thus clear that the governing principles as regards the amount to be calculated and the rates to be applied have to be in accordance with the provisions of the Act, if an employee is covered by the provisions of the Act. If the amount is to be so calculated according to the provisions of the Act in case of employees covered by the provisions of the Act, there is no other alternative which is offered by the Company or which is part of any award or agreement or contract entered into between the employer and employees. (426 words)

Passage No 49

After thorough analysis of all relevant and attendant factors, we are of the opinion that none of the grounds on which the High Court has cleared the respondent has any merit. By now it is well settled that the testimony of a victim in cases of sexual offences is vital and unless there are compelling reasons which necessitate looking for corroboration of a statement, the courts should find no difficulty to act on the testimony has to inspire confidence. Seeking corroboration to a statement before relying upon the same as a rule in such cases would literally amount to adding insult to injury. The deposition of the prosecutrix has thus to be taken as a whole. Needless to reiterate that the victim of rape is not an accomplice and her evidence can be acted upon without corroboration. She stands at a higher pedestal than an injured witness does. If the court finds it difficult to accept her version, it may seek corroboration from some evidence which lends assurance to her version. To insist on corroboration except in the rarest of rare cases is to equate one who is a victim of the lust of another with an accomplice to a crime and thereby insult womanhood. It would be adding insult to injury to tell a woman that her claim of rape will not be believed unless it is corroborated in material particulars as in the case of an accomplice to a crime. Why should the evidence of the girl or the woman who complains of rape or sexual molestation be viewed with the aid of spectacles fitted with lenses with doubt disbelief or suspicion? The plea about lack of corroboration has no substance. Notwithstanding this legal position in the instant case we even find enough corroborative material as well, which is discussed here in above.

From the evaluation of the prosecution material discussed above it is abundantly clear that the evidence brought on record contains positive proof, credible sequence of events and factual truth linking the respondent with rape of the prosecutrix and had criminally intimidated her. Hence, respondent is found to be guilty for offence under Section 376 and 596 of IPC since he committed rape with a minor girl aged nine years. It is pertinent to point out at this stage that at the time of deposition of the prosecutrix in the Court, the trial court had an opportunity to see her demeanor. (405 words)

Passage No 50

On an examination of the pleadings of two writ petitions, we find that the issues for consideration were all different in the petitions. In the first petition, relief was sought under the Contract Labour Act, 1970 for abolition of contract labour system in the operation of canteen in the marketing establishment of IOC and for absorbing the canteen workers as employees of IOC. In the second petition, relief was sought under the Industrial Disputes Act 1947 for making a reference under section 10 to the Industrial Tribunal to decide whether the contract between IOC and the canteen contractor was sham, nominal and a mere camouflage to avoid extension of labour law benefits to the workers in question and whether the canteen workers were the direct employees of IOC. The assumption that the appellant had taken inconsistent stands in the two writ petitions is not correct. Even in the first writ petition, the appellant had contended that though the contractors changed from time to time, the workers in the canteen remained the same with continuity of service that IOC had mala fide and illegally kept the workers as contract labour in order to keep them in a permanent state of insecurity and to deny them the wages and privileges available to permanent workers that IOC was actually controlling and supervising the canteen and that only as a camouflage, the contractor was shown as running the canteen to create a pretense that the workmen of IOC were the workers of the contractor, when in fact they were the employees of IOC. In short, the appellant had contended that the contract was sham and nominal, in the first petition. Even in the second writ petition, the contention was that the contract was sham and a camouflage to avoid extending benefits of regular employees to the canteen workers. Therefore the High Court committed a serious error in assuming that in the first writ petition, the appellant had conceded that the contract between the IOC and the canteen contractor was valid and genuine and that in the second writ petition the appellant had taken a contrary stand that the contract was sham and a camouflage. The stand of the appellant and the workers was always consistent. But before the decision of a Constitution Bench of this court in Steel Authority of India Ltd. v National Union Workers 2001 SCC 1, it was thought that the appropriate relief available was to seek an investigation and abolition of contract labour. (413 words)